

FL.5 Forms & Documents Index

Every document you will meet, what it is called, who issues it, and when it is due.

Before you use this document

This is a process reference, not legal advice. Florida is the opposite of a no-permit state: one building code binds every parcel in all 67 counties, every jurisdiction permits and inspects, and a local government may not simply write its own residential code. What still varies is the part that costs you money and weeks — fees, impact fees, review queues, portals, and which *additional* permits your particular lot triggers before the building department will act. Confirm every item with the office that will actually handle your parcel before you rely on it.

THE PERMIT DOCUMENTS

Getting the permit

Document	Who issues it	When
Building permit application	Your building department	You sign it in person at the counter — the exemption requires it
Owner-Builder Disclosure Statement	Given to you by the local permitting agency; text is printed in the statute	Signed before the permit issues. Twelve numbered paragraphs — see FL.1
Electrical owner disclosure statement	Same, under the separate Part II exemption	Only if you will do your own wiring. Different terms from the one above
Identity verification	Your building department	At permit issuance: driver license copy, notarized signature, or another method the agency accepts
Product approval schedule	Format set by your building department; FL numbers come from the state product search	With the plans. One approval number per exterior opening and covered product
Form R400-2023	Florida Building Commission	Residential Energy Conservation Code Documentation Checklist — with the application
Form R402-2023 , or a performance report	Commission form, or Commission-approved energy software	Prescriptive path uses the form; performance path uses the software's report. Not REScheck
Truss engineering and placement plan	Your truss manufacturer's engineer	With the plans. The engineering is sealed; ask your reviewer what they expect for the placement plan

Getting the permit

Document	Who issues it	When
Private provider notice	Commission-adopted form, filed with the building official	Only if you hire your own plan review and inspections — at application, or 2 business days before the first inspection

THE DOCUMENTS FROM EVERYONE ELSE

Approvals that are not building permits

Document	Who issues it	When
Form DEP 4015	Dept. of Environmental Protection, or your county health department	Septic construction permit application, with a scaled site plan and floor plan. Before your building permit
Form DEP 4016	Same	The septic construction permit and inspection document itself. Valid 18 months
Site evaluation and soil profiles	A licensed engineer with soils training, department personnel, a Master Septic Tank Contractor, a certified soil scientist, or a person certified under s. 381.0101	With the septic application. You may not perform this yourself for a new system. Valid 180 days before application
Final installation approval	Same agency as your septic permit	Before occupancy — a statutory precondition, separate from your certificate of occupancy
Well construction permit	Your water management district	Before drilling. Applied for by you or by the well contractor on your behalf
Elevation Certificate	A surveyor or engineer, on the FEMA form	In a flood hazard area: at placement of the lowest floor before further vertical construction, and again at final
CCCL permit	Dept. of Environmental Protection	Before construction seaward of the coastal construction control line. A separate state permit
Termite Certificate of Compliance	A licensed pest control company	Issued to the building department after treatment. Soil treatment goes in after backfill and compaction
Blower door test report	An energy auditor or rater, a Class A or B air-conditioning or mechanical contractor, or an approved third party	Before the certificate of occupancy. Maximum 7 ACH50. Not self-certified

Approvals that are not building permits

Document	Who issues it	When
Driveway or access permit	Your county, or the Dept. of Transportation for a state road	Before you build the connection

THE LIEN PAPERWORK — WHICH IS YOURS NOW

Florida's construction lien law assumes a general contractor stands between the owner and the subs. As an owner-builder you removed that person, so the documents that normally protect an owner have nobody to come from. These are now your job, and the deadlines are short.

The documents that decide whether you pay twice

Document	What it does	Cite
Notice of Commencement	Recorded by you at the clerk of the circuit court before work begins; posted at the site; a copy filed with the building department before the first inspection. The statute prints the form.	s. 713.13
Notice to Owner	Comes to you, from subs and suppliers you did not contract with directly. They must serve it before commencing or within 45 days of first furnishing. Keep every one — the list of who served you is the list of who can lien you.	s. 713.06(2)(a)
Waiver and Release of Lien upon Progress Payment	Collect one from each sub and supplier every time you pay. The statute prescribes the wording, and you may not demand a different form.	s. 713.20(4), (6)
Waiver and Release of Lien upon Final Payment	The unconditional version, at final payment. Note that a lien right cannot be waived in advance — a waiver signed before work starts is unenforceable.	s. 713.20(2), (5)
Contractor's Final Payment Affidavit	Sworn, on the statutory form, stating every lienor who served a notice has been paid. Retain final payment until you have it. Pay without it and the property is exposed to the full amount of valid liens you had notice of.	s. 713.06(3)(d)
Notice of Contest of Lien	Your counterpunch. Recording it cuts a lienor's time to sue from one year to 60 days from service ; a lienor who does not sue in that window has their lien "extinguished automatically."	s. 713.22(2)
Notice of Termination	Ends the Notice of Commencement's effective period once all lienors are paid. Must be accompanied by the contractor's affidavit, served before recording, and takes effect no earlier than 30 days after recording.	s. 713.132

Three deadlines worth writing on the wall

45 days — a sub or supplier not in direct contract with you must serve a Notice to Owner within 45 days of first furnishing. Failure to serve it, or to serve it in time, “is a complete defense to enforcement of a lien.”

90 days — a claim of lien must be recorded “not later than 90 days after the final furnishing of the labor or services or materials by the lienor.” After that the window closes.

1 year, or 60 days if you act — a recorded lien does not continue longer than one year unless the lienor sues. Record a Notice of Contest of Lien and that becomes 60 days from service. Most owner-builders never learn this exists.

Sections 713.06(2)(a), 713.08(5) and 713.22(1)-(2), Fla. Stat. (2026). Lien law is where an owner-builder's money is genuinely at risk; if a lien is recorded against your property, this kit's job is to tell you the clock exists, not to replace a construction attorney.

WHAT THIS KIT DELIBERATELY DOES NOT TELL YOU

Everything in this kit was read against a primary source. A few things an owner-builder reasonably wants were checked and then **left out** because they could not be verified to that standard. Silence would imply they do not matter, so here they are, with what to ask instead.

- **County permit fees, plan review fees and impact fees.** Set locally, revised often, and frequently misquoted. Ask for the published impact fee schedule — every local government is required to publish one — and get the building permit fee in writing with your application.
- **A county-by-county wind speed table.** The code itself now points to a location-specific lookup rather than a table, so a table would only invite you to design to the wrong number. Use ascehazardtool.org and confirm with your building department.
- **The exact wording of the windborne debris region definition.** The 8th Edition amended it, and the current wording could not be obtained from a primary source. Ask your building department to confirm in writing whether your parcel is in the region — and do not assume an inland lot is exempt.
- **A freeboard figure, or which ASCE 24 edition applies.** Freeboard above base flood elevation is set by local ordinance and varies. Ask your floodplain administrator for the number and for which elevation certificates they require, at which stages.
- **A duct leakage figure.** The air leakage limit is verified at 7 ACH50; the duct test threshold was not, so it is not printed. Ask your rater what they will test to.
- **A minimum lot frontage for a private-well lot.** The half-acre minimum area is verified; a companion dimension figure was not. Ask your septic permitting office.
- **Whether you personally must carry workers' compensation.** Two Florida statutes point different directions here and this kit will not pick one for you — see FL.1. Ask a Florida insurance agent or attorney before anyone works on your lot.

One habit worth more than this whole kit

Whenever an office tells you something that matters — your flood zone, your wind speed, whether your parcel is in the windborne debris region, which septic office has your county, what verification they want at issuance — **ask them to put it in an email**, and file it. Staff turn over, portals change, and the person who told you in March may not be there in September. A dated written answer is the difference between a conversation and a record.

SOURCES

Sources — every Florida claim in this document (verified September 2026)

What this document states	Authority
The owner-builder disclosure statement and the personal appearance requirement	s. 489.103(7)(c)
The separate electrical owner disclosure statement	s. 489.503(6)(c)
Private provider notice to the building official	s. 553.791(4)
Septic construction permit application and permit forms, and the 18-month term	Rules 62-6.003(1), 62-6.004(1), F.A.C.
Who may perform the site evaluation for a new system, and its 180-day validity	Rule 62-6.004(3), F.A.C.
Septic construction permit before the building permit; final installation approval before occupancy	s. 381.0065(4)
Well construction permit required before construction	Rule 62-532.400(1), F.A.C.
Termite treatment and the Certificate of Compliance to the building department	FBC Residential R318.1
Building air leakage testing, the 7 ACH50 limit and who may perform it	FBC Energy Conservation R402.4.1.2
Elevation certification at the lowest floor and at final inspection	FBC Building 110.3
Notice of Commencement: form, recording, posting and filing	ss. 713.13, 713.135
Notice to Owner within 45 days, and that failure to serve is a complete defense to the lien	s. 713.06(2)(a)
The two statutory lien waiver forms, the bar on advance waiver, and the bar on demanding a different form	s. 713.20(2), (4), (5), (6)
The Contractor's Final Payment Affidavit and the duty to retain final payment until it is furnished	s. 713.06(3)(d)
A claim of lien must be recorded within 90 days of final furnishing	s. 713.08(5)

Sources — every Florida claim in this document (verified September 2026)

What this document states	Authority
A lien lasts 1 year unless suit is brought; a Notice of Contest of Lien reduces that to 60 days from service	s. 713.22(1), (2)
Notice of Termination mechanics	s. 713.132

Every source cited in this kit is free to read. A **Fla. Stat.** section is at **flsenate.gov** → Laws → Florida Statutes, or go straight to the section by typing the year and number into the address bar — flsenate.gov/Laws/Statutes/2024/489.103 — which is faster than the search box (chapters used here: **489** contracting, **553** the building code, **713** construction liens, **161** coastal, **373** water). A rule cited as **F.A.C.** is at **flrules.org** → Search → by rule number. The building code itself is at **floridabuilding.org** → Codes, free to read online without an account. **One warning when you check a number:** flsenate.gov keeps every past year's statutes at a nearly identical address, so a search result can hand you a repealed version — check that the year in the URL is the current one before you rely on the text. All text here was read at those sources, September 2026.